

25NWCV02520 25NWCV02520

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25NWCV02520 Hearing Date: August 11, 2026 Dept: R

#19

LUNA v. VOLKSWAGEN GROUP OF AMERICA

CASE NO.: 25NWCV02520

HEARING: Tuesday, August
11, 2026, at 9:30 AM

Plaintiff's Motion for Attorney's Fees is GRANTED in the amount of \$15,085.8 in attorney's fees and costs of \$586.50.

This amount is to be paid by no later than 90 days
from the date of the Court's issuance of this Order. This date may be extended
by agreement of the parties.

Moving Party to give
notice.

Background

The relevant procedural history of this case is as follows: On
July 10, 2025, Plaintiff ROBERT LUNA ("Plaintiff") filed this lemon law action against
Defendants VOLKSWAGEN GROUP OF AMERICA, INC. ("Defendant") and DOES 1 through 10,
inclusive. On December 15, 2025, the parties resolved the matter through
settlement.

Plaintiff now moves for attorney's fees in the amount of \$21,010.80[1]

with a 1.1 times multiplier. Plaintiff also seeks to recoup \$586.50 in costs.

Prevailing Party

Cal. Civ. Code §1794(d) states, “[i]f the buyer prevails in an action under [the Song Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.”

It is undisputed that Plaintiffs are the prevailing party and is entitled to reasonable attorney’s fees. The only issue pending before this Court is the amount of the award.

Attorney’s Fees

The matter of reasonableness of a party’s attorney’s fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) When assessing the amount of any attorney’s fee award, courts typically determine what is reasonable through the application of the “lodestar” method. Under the lodestar method, a base amount is calculated from a compilation of (1) time reasonably spent and (2) the reasonable hourly compensation of each attorney. (*Serrano v. Priest (“Serrano III”)* (1977) 20 Cal.3d 25, 48); (See also *Meister v. Regents of University of California* (1998) 67 Cal.App.4th 437, 448-449 holding that the lodestar method applies to statutory attorney fees award unless the underlying statute provides for another method of calculation). Normally, a “reasonable” hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) That amount may then be adjusted through the consideration of various factors, including “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, and (4) the contingent nature of the fee award.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The Court is vested with discretion to determine which claimed hours were reasonably spent, and what an attorney’s reasonable hourly rate is. (*Dover Mobile Estates v. Fiber Form Products, Inc.* (1990) 220 Cal.App.3d 1494, 1501); (See also *Flannery v. California Highway*

Patrol (1987) 61 Cal.App.4th 629, 644.) ["We readily acknowledge the discretion of the trial judge to determine the value of professional services rendered in his or her court."].

Plaintiff's Counsels' Firm Neale & Fhima, APC bills at a rate from \$450/hr. to \$625/hr. (See Alam Decl., ¶ 25.) A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (PLCM Group, Inc. v. Drexier (2000) 22 Cal.4th 1064, 1095.) Based on the declarations submitted by Counsel, the Court finds Counsels' rates to be reasonable.

The Court's next determines whether the number of hours billed is reasonable. (Dover Mobile Estates v. Fiber Form Products, Inc. (1990) 220 Cal.App.3d 1494, 1501.)

Plaintiff seeks \$21,010.8 in attorney's fees. Defendant counters and ask the Court to award no more than \$8,578. Upon review of Plaintiff's billing records, the Court finds that neither position is correct.

The Court has carefully reviewed the declarations submitted by counsel. The Court agrees with opposing counsel that the following time entries are excessive:

(1) Aaron Fhima
billed a flat \$3,900 rate for "all services rendered prior to the preparation of the Complaint."

(2) Gabrielle
Diamse billed \$945 for "Receive and review documents; put together litigation file; Draft repair history summary; Phone call with Client regarding repair history."

(3) Nadia Alam
billed 5.2 hours or \$2340 in connection with drafting the subject motion.

(4) Plaintiff
seeks 6 hours or \$2,700 in connection with reviewing Defendant's Opposition, preparing a Reply, and attending the instant hearing.

The Court notes nearly one fourth of requested fees are for work surrounding the instant motion. The Court reduces Plaintiff's fees accordingly.

Moreover, based on the non-complexity of this case and the routine nature of lemon law litigation, the Court does not find a multiplier reasonable or necessary.

Costs

"A verified memorandum of costs is prima facie evidence of the propriety of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary." *Adams v. Ford Motor Co.* (2011) 199 Cal.App.4th 1475, 1486 (citations and quotations omitted).

"Documentation must be submitted only when a party dissatisfied with the costs claimed in the memorandum challenges them by filing a motion to tax costs." *Bach v. County of Butte* (1989) 215 Cal.App.3d 294, 308. However, "mere statements in a motion to strike and attorney declaration are insufficient to rebut the prima facie showing." *Rojas v. HSBC Card Services Inc.* (2023) 93 Cal.App.5th 860, 896.

On February 20, 2026, Plaintiff filed a verified Memorandum of Costs. Plaintiff's costs are awarded in full.

Conclusion

Plaintiff's Motion for Attorney's Fees is GRANTED in the amount of \$15,085.00 in attorney's fees and costs of \$586.50.

[1]

Adjusted claimed amount based on Plaintiff's Reply.